

IN THE SENATE

SENATE BILL NO. 1356

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO SINGLE COUNTYWIDE HIGHWAY DISTRICTS; AMENDING SECTION 40-1404A, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE ELECTION OF SINGLE COUNTYWIDE HIGHWAY DISTRICT COMMISSIONERS; AMENDING SECTION 34-702, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-702A, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-703, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-704, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-705, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-706, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 34-708, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 34-712, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-714, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-715, IDAHO CODE, TO PROVIDE FOR CERTAIN SINGLE COUNTYWIDE HIGHWAY DISTRICT ELECTIONS; AMENDING SECTION 34-905A, IDAHO CODE, TO REVISE PROVISIONS REGARDING CERTAIN HIGHWAY DISTRICT BALLOTS; AND DECLARING AN EMERGENCY AND PROVIDING EFFECTIVE DATES.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 40-1404A, Idaho Code, be, and the same is hereby amended to read as follows:

40-1404A. ELECTIONS, TERMS AND SALARIES OF COMMISSIONERS IN CERTAIN COUNTYWIDE HIGHWAY DISTRICTS. (1) In countywide highway districts located in a county with a population of more than two hundred thousand (200,000) persons in which the voters have chosen to establish a countywide highway district at a previous election, the county shall be divided by the county commissioners immediately upon the effective date of this act into five (5) subdistricts, which shall be as nearly equal in population as practicable. No precincts shall be divided. A highway district commissioner shall be a resident of the subdistrict ~~which~~ that he represents. ~~Voters in each sub-~~  
~~district~~ shall vote only for one (1) candidate seeking to represent ~~that~~  
each subdistrict. County commissioners, mayors and city council members shall not be eligible to hold office as a countywide highway district commissioner. At the election held in 1998, commissioners representing subdistricts two and five shall be elected for two (2) year terms and commissioners representing subdistricts three and four shall be elected for four (4) year terms. Thereafter, all commissioners shall be elected for four (4) year

terms. Any incumbent in office on the effective date of this act may complete the term to which they were elected and shall represent the subdistrict in which they reside. Any incumbent in office on the effective date of this act whose term expires on January 1, 2000, shall retain that office until January 1, 2000, shall be assigned the subdistrict in which they reside by the county commissioners, which subdistrict shall be numbered one as provided in this section, and that commissioner need not stand for election in 1998.

(2) A qualified voter of the countywide highway district shall be eligible to vote for a each of the countywide highway district commissioner re-  
siding in the elector's subdistrict commissioner offices, and the election shall be conducted as provided by Idaho statutes relating to holding general elections at the county level.

(3) Beginning with the elections of 2028, the election of highway dis-  
trict commissioners in a highway district subject to the provisions of this  
section shall include primary elections pursuant to the provisions of chap-  
ter 7, title 34, Idaho Code.

(4) The highway commissioners shall take office on January 1 of the year immediately following their election, and each may be compensated in accordance with the provisions of section 40-1314, Idaho Code, or receive a salary not to exceed one thousand two hundred dollars (\$1,200) per calendar month, with the exception of the president of the highway commissioners who may receive a salary not to exceed one thousand four hundred dollars (\$1,400) per calendar month.

SECTION 2. That Section 34-702, Idaho Code, be, and the same is hereby amended to read as follows:

34-702. REQUIREMENTS FOR WRITE-IN CANDIDATES AT PRIMARY. (1) In addition to possessing all other qualifications, in order to become a candidate of a political party at the general election, those candidates whose names are written in at the primary election must:

(a) Receive at least the following number of write-in votes at the primary election:

- (i) One thousand (1,000) for any statewide office;
- (ii) Five hundred (500) for a congressional district office;
- (iii) Fifty (50) for a legislative district office; or
- (iv) Five (5) for a county office or a single countywide highway  
district office pursuant to section 40-1404A, Idaho Code; and

(b) File a declaration of intent for that office, pursuant to section 34-702A, Idaho Code.

(2) Candidates who are required to file with the secretary of state shall pay the filing fee required for that office no later than the deadline for filing a declaration of intent pursuant to section 34-702A, Idaho Code, or shall file a petition pursuant to section 34-626, Idaho Code.

(3) No write-ins shall be allowed for judicial office.

SECTION 3. That Section 34-702A, Idaho Code, be, and the same is hereby amended to read as follows:

34-702A. DECLARATION OF INTENT FOR WRITE-IN CANDIDATES. (1) No write-in vote for any office in a primary, special, or general election shall

1 be counted unless a completed declaration of intent form has been filed indi-  
 2 cating that the person desires the office and is legally qualified to assume  
 3 the duties of said office if elected.

4 (2) The declaration of intent for write-in candidates for federal,  
 5 state, or legislative district offices shall be filed with the secretary  
 6 of state no later than 5:00 p.m. on the eleventh Friday before the primary  
 7 election.

8 (3) The declaration of intent for write-in candidates for county  
 9 office, single countywide highway district office pursuant to section  
 10 40-1404A, Idaho Code, or party precinct committeeman office shall be filed  
 11 with the county clerk no later than 5:00 p.m. on the ninth Friday before the  
 12 primary election.

13 (4) For a write-in candidate for president, the declaration shall in-  
 14 clude a certification of the write-in candidate's vice presidential and  
 15 presidential electors, all of whom must be qualified to serve in their re-  
 16 spective offices. The secretary of state shall prescribe the form for said  
 17 declarations.

18 (5) In those counties that utilize optical scan ballots, an elector  
 19 shall not place on the ballot a sticker bearing the name of a person or use any  
 20 other method or device, except writing, to vote for a person whose name is not  
 21 printed on the ballot.

22 SECTION 4. That Section 34-703, Idaho Code, be, and the same is hereby  
 23 amended to read as follows:

24 34-703. NOMINATION AT PRIMARY. (1) All political party candidates for  
 25 United States senator and representative in congress and all political party  
 26 candidates for elective state, district, single countywide highway district  
 27 pursuant to section 40-1404A, Idaho Code, and county offices, except can-  
 28 didates for judicial office, at general elections shall be nominated at the  
 29 primary elections, or shall have their names placed on the general election  
 30 ballot as provided by law, and shall comply with the provisions of this act.

31 (2) All candidates for judicial office shall be nominated or elected at  
 32 the primary election, as provided by section 34-1217, Idaho Code.

33 (3) Independent candidates shall not be voted on at primary elections.

34 SECTION 5. That Section 34-704, Idaho Code, be, and the same is hereby  
 35 amended to read as follows:

36 34-704. DECLARATION OF CANDIDACY. (1) Any person legally qualified to  
 37 hold such office is entitled to become a candidate and file a declaration of  
 38 candidacy. All political party candidates shall declare their party affili-  
 39 ation in their declaration of candidacy and shall be affiliated with a party  
 40 at the time of filing. A candidate shall be deemed affiliated with the po-  
 41 litical party if the candidate submits a party affiliation form along with  
 42 the declaration of candidacy to the appropriate filing official. The fil-  
 43 ing official shall reject any declaration of candidacy for partisan office  
 44 in a primary election from candidates who are not affiliated with a political  
 45 party. Candidates for nonpartisan office shall file during the period pro-  
 46 vided for in this section.

1       (2) Each political party candidate for federal, state, or legislative  
2 district office shall file a declaration of candidacy with the secretary of  
3 state's office between 8:00 a.m. on the thirteenth Monday before the primary  
4 election and 5:00 p.m. on the twelfth Friday before the primary election.

5       (3) Each political party candidate for county office, single county-  
6 wide highway district office pursuant to section 40-1404A, Idaho Code, or  
7 precinct committeeman office shall file a declaration of candidacy with the  
8 county clerk's office between 8:00 a.m. on the twelfth Monday before the  
9 primary election and 5:00 p.m. on the tenth Friday before the primary elec-  
10 tion.

11       (4) Candidates who file a declaration of candidacy under a party name  
12 and are not nominated at the primary election shall not be allowed to appear  
13 on the general election ballot under any other political party name or as an  
14 independent candidate.

15       (5) Independent candidates shall file their declaration of candidacy  
16 in the manner provided in section 34-708, Idaho Code.

17       (6) All information in declarations of candidacy shall be made publicly  
18 available upon request, except that the Idaho residential street address and  
19 telephone number of a judicial officer may be exempt from disclosure pur-  
20 suant to sections 19-6202 and 74-106(30), Idaho Code.

21       SECTION 6. That Section 34-705, Idaho Code, be, and the same is hereby  
22 amended to read as follows:

23       34-705. WITH WHOM DECLARATIONS FILED. (1) All candidates for county  
24 offices and single countywide highway district offices pursuant to section  
25 40-1404A, Idaho Code, whether political party candidates or independent  
26 candidates, and all political party candidates for precinct offices shall  
27 file their declarations of candidacy with the county clerk of their respec-  
28 tive counties. All candidates for district, state and federal offices shall  
29 file their declarations of candidacy with the secretary of state.

30       (2) The secretary of state shall certify to the county clerks, no later  
31 than 5:00 p.m. on the tenth Friday before the primary election, the names of  
32 the political party candidates who filed for federal, state, and legislative  
33 district offices and are qualified for placement on the ballot.

34       (3) The secretary of state shall certify the name of a candidate being  
35 appointed by the appropriate central committee pursuant to section 34-714,  
36 Idaho Code, by no later than the next business day after the appointment is  
37 received in the secretary of state's office, if received after the certifi-  
38 cation of candidates to the county clerks under subsection (2) of this sec-  
39 tion.

40       SECTION 7. That Section 34-706, Idaho Code, be, and the same is hereby  
41 amended to read as follows:

42       34-706. NOTIFICATION TO PARTIES. Within three (3) days after the dead-  
43 line for filing declarations of political party candidacy, the county clerk  
44 shall notify the county central committee of each political party of the can-  
45 didates who have filed for county offices, single countywide highway dis-  
46 trict offices pursuant to section 40-1404A, Idaho Code, and precinct offices  
47 under the party name and are qualified.

1        Within three (3) days after the deadline for filing declarations of po-  
 2        litical party candidacy, the secretary of state shall notify the legislative  
 3        district central committee of each political party of the legislative candi-  
 4        dates who have filed under the party name and are qualified.

5        Within three (3) days after the deadline for filing declarations of po-  
 6        litical party candidacy, the secretary of state shall notify the state cen-  
 7        tral committee of each political party of the candidates who have filed for  
 8        federal and state offices under the party name and are qualified.

9        SECTION 8. That Section 34-708, Idaho Code, be, and the same is hereby  
 10       amended to read as follows:

11       34-708. INDEPENDENT CANDIDATES. (1) No person may offer himself as an  
 12       independent candidate at the primary election.

13       (2) Any person who desires to offer himself as an independent candi-  
 14       date for federal, state, district, single countywide highway district pur-  
 15       suant to section 40-1404A, Idaho Code, or county office may do so by com-  
 16       plying strictly with the provisions of this section. In order to be recog-  
 17       nized as an independent candidate, each such candidate must file with the  
 18       proper officer as provided by section 34-705, Idaho Code, a declaration of  
 19       candidacy as an independent candidate, during the period specified in sec-  
 20       tion 34-704, Idaho Code. Such declaration must state that he is offering  
 21       himself as an independent candidate, must declare that he has no political  
 22       party affiliation, and must declare the office for which he seeks election.  
 23       Each such declaration must be accompanied by a petition containing the fol-  
 24       lowing number of signatures of qualified electors:

25       (a) One thousand (1,000) for any statewide office;

26       (b) Five hundred (500) for any congressional district office;

27       (c) Fifty (50) for any legislative district office; or

28       (d) Five (5) for any county office or a single countywide highway dis-  
 29       trict office pursuant to section 40-1404A, Idaho Code.

30       (3) Signatures on the petitions required in this section shall be veri-  
 31       fied in the manner prescribed in section 34-1807, Idaho Code, on a form simi-  
 32       lar to that used for recall petitions under chapter 17, title 34, Idaho Code,  
 33       as prescribed by the secretary of state.

34       (4) If all of the requirements of this section have been met, the proper  
 35       officer shall cause the name of each independent candidate who has qualified  
 36       to be placed on the general election ballot, according to instructions of the  
 37       secretary of state.

38       SECTION 9. That Section 34-712, Idaho Code, be, and the same is hereby  
 39       amended to read as follows:

40       34-712. SAMPLE FORM FOR PRIMARY ELECTION BALLOTS. The secretary of  
 41       state shall provide the sample form of the primary election ballot to each of  
 42       the county clerks no later than the ninth Friday before the primary election.  
 43       The sample ballot shall contain the proper political party candidates to be  
 44       voted on within the county whose declarations were filed and certified in  
 45       the office of the secretary of state with instructions for the placing of po-  
 46       litical party candidates seeking the political party nomination for county  
 47       offices, single countywide highway district offices pursuant to section

1 40-1404A, Idaho Code, and precinct offices. If a county is within more than  
 2 one (1) legislative district, the secretary of state shall provide a sample  
 3 ballot for each legislative district that includes part of the county.

4 SECTION 10. That Section 34-714, Idaho Code, be, and the same is hereby  
 5 amended to read as follows:

6 34-714. FILLING VACANCIES IN SLATE OF POLITICAL PARTY CANDIDATES  
 7 OCCURRING PRIOR TO PRIMARY ELECTION. (1) Vacancies that occur before the  
 8 primary election in the slate of candidates of any political party because  
 9 of the death, disqualification for any reason, or withdrawal from the nom-  
 10 ination process by the candidate shall be filled in the following manner if  
 11 there is only one (1) candidate declared for that particular office:

12 (a) By the county central committee if the vacancy occurs for the office  
 13 of precinct committeeman, ~~or for a county office, or a single countywide~~  
 14 highway district office pursuant to section 40-1404A, Idaho Code.

15 (b) By the legislative district central committee if the vacancy occurs  
 16 for the office of state representative or state senator.

17 (c) By the state central committee if the vacancy occurs for a federal  
 18 or state office.

19 The county and legislative district central committee shall fill the  
 20 vacancy within fifteen (15) days from the date the vacancy occurred. The  
 21 state central committee shall fill the vacancy within thirty (30) days from  
 22 the date the vacancy occurred, but no later than 5:00 p.m. on the eighth  
 23 Friday before the primary election.

24 Any political party candidate so appointed by the proper central com-  
 25 mittee must, in order to have his name on the primary ballot, file a declara-  
 26 tion of candidacy and pay the required filing fee no later than 5:00 p.m. on  
 27 the eighth Friday before the primary election.

28 (2) No central committee shall fill any vacancy that occurs after 5:00  
 29 p.m. on the eighth Friday before the primary election. Vacancies that oc-  
 30 cur after this date because of the death, disqualification for any reason, or  
 31 withdrawal from the nomination process by the candidate shall be filled ac-  
 32 cording to the provisions of section 34-715, Idaho Code.

33 (3) Vacancies that occur in a slate of candidates for precinct com-  
 34 mitteeman after 5:00 p.m. on the eighth Friday before the primary election  
 35 shall not be filled.

36 SECTION 11. That Section 34-715, Idaho Code, be, and the same is hereby  
 37 amended to read as follows:

38 34-715. FILLING OF VACANCIES OCCURRING BEFORE OR AFTER PRIMARY ELEC-  
 39 TION. (1) Vacancies that occur after 5:00 p.m. on the eighth Friday before a  
 40 primary election, or after the primary election but before 5:00 p.m. on the  
 41 eighth Friday before the general election in the slate of candidates of any  
 42 political party because of the death or disqualification for any reason of a  
 43 candidate, except candidates for precinct committeeman, shall be filled in  
 44 the following manner if there is only one (1) candidate declared from the po-  
 45 litical party for that particular office:

1 (a) By the county central committee if it is a vacancy by a candidate for  
 2 a county office or a single countywide highway district office pursuant  
 3 to section 40-1404A, Idaho Code.

4 (b) By the legislative district central committee if it is a vacancy by  
 5 a candidate for the state legislature.

6 (c) By the state central committee if it is a vacancy by a candidate for  
 7 a federal or a state office.

8 (d) If the party candidate for a particular office dies or is disquali-  
 9 fied after 5:00 p.m. on the eighth Friday before the general election,  
 10 such candidate's name shall remain on the ballot. If the deceased or  
 11 disqualified candidate wins the general election, the resulting va-  
 12 cancy shall be filled pursuant to chapter 9, title 59, Idaho Code.

13 (2) The county and legislative district central committee shall fill  
 14 the vacancy within fifteen (15) days from the date the vacancy occurred. The  
 15 state central committee shall fill the vacancy within thirty (30) days from  
 16 the date the vacancy occurred, but no later than 5:00 p.m. on the eighth Fri-  
 17 day before the general election.

18 (3) Any political party candidate so appointed by the proper central  
 19 committee must, in order to have his name on the general ballot, file a dec-  
 20 laration of candidacy and pay the required filing fee no later than 5:00 p.m.  
 21 on the eighth Friday before the general election.

22 (4) Vacancies that occur in a slate of candidates for precinct com-  
 23 mitteeman after 5:00 p.m. on the eighth Friday before the primary election  
 24 shall not be filled.

25 SECTION 12. That Section 34-905A, Idaho Code, be, and the same is hereby  
 26 amended to read as follows:

27 34-905A. NONPARTISAN BALLOTS FOR ELECTION OF HIGHWAY DISTRICT COM-  
 28 MISSIONERS -- PLURALITY REQUIRED FOR ELECTION. There shall be a single  
 29 nonpartisan ballot for the election of highway district commissioners in  
 30 each highway district. The ballot shall designate the highway district  
 31 commissioners subdistrict, and the names of all candidates for that office  
 32 shall be listed thereon. The ballot shall also contain the words: "Vote for  
 33 One," followed by the names of the candidates for the office. The candidate  
 34 with the most votes shall be declared the successful candidate. The provi-  
 35 sions of this section shall not apply to the election of commissioners of a  
 36 single countywide highway district organized pursuant to chapter 14, title  
 37 40, Idaho Code.

38 SECTION 13. An emergency existing therefor, which emergency is hereby  
 39 declared to exist, Sections 1 through 11 of this act shall be in full force  
 40 and effect on and after July 1, 2026; and Section 12 of this act shall be in  
 41 full force and effect on and after January 1, 2027.